



## **DEPARTMENT OF PUBLIC SAFETY**

### **Division of Homeland Security and Emergency Management Office of Public Safety Communications**

#### **OFFICE OF PUBLIC SAFETY COMMUNICATIONS ADMINISTRATION**

##### **8 CCR 1507-81**

*[Editor's Notes follow the text of the rules at the end of this CCR Document.]*

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#### **1. Authority**

This rule is adopted pursuant to § 24-33.5-2503(5) and § 24-33.5-2504, C.R.S. and the State Administrative Procedure Act § 24-4-101 et seq. C.R.S.

#### **2. Scope and Purpose**

This rule governs the continuity of existence of the powers, duties, and functions of the Office of Public Safety Communication regarding the transfer of functions of the Office from the State Office of Information Technology to the Division of Homeland Security and Emergency Management in the Department of Public Safety. The Office of Public Safety Communications is created pursuant to § 24-33.5-2505, C.R.S. to more efficiently support the efforts of State Departments, State Institutions, State Agencies, Law Enforcement Agencies, and any Public Safety Political Subdivisions, and to better serve the Public. The Office of Public Safety Communications will coordinate and manage the establishment of a state public safety communications network, and the Director of the Office of Public Safety Communications will supervise the maintenance and administration of the network pursuant to §§ 24-33.5-2505 and 24-33.5-2509, C.R.S.

#### **3. Applicability**

This rule applies to all local governments and state agencies as defined by 24-33.5-2505(4)(I-II), C.R.S.

#### **4. Definitions**

“Director” means the Director of the Office of Public Safety Communications as appointed by the Director of the Division of Homeland Security and Emergency Management.

“Division” means the Division of Homeland Security and Emergency Management within the Colorado Department of Public Safety as created in section 24-33.5-1603, C.R.S.

“Interoperable Communications” means the ability of public safety agencies in various disciplines and jurisdictions to communicate with each other on demand and in real time by voice or data using compatible radio communication systems or other technology.

“Local Government” means a city, county, municipality, city and county, tribal government, or any other political subdivision of the state that is not a state agency.

“Office” means the Office of Public Safety Communications created in section 24-33.5-2502, C.R.S.

“Public Safety Agency” means an agency providing law enforcement, fire protection, emergency medical, or emergency response services.

“Public Safety Communications Systems” means the interoperable public safety radio communications systems conforming with the statewide digital trunked radio system plan and designed to provide instant and disruption-resistant communication capability for law enforcement agencies and other eligible entities that may be called upon to deal with natural disasters, health emergencies, acts of terrorism, and other threats to public health and safety.

“Region” means an all-hazard emergency management region established by executive order of the Governor.

“State Agency” means any department, division, commission, council, board, bureau, committee, office, agency, or other governmental unit of the state.

## **5. Responsibilities and Requirements**

The Director of the Office of Public Safety Communications shall perform or shall delegate the following functions concerning public safety communications to ensure the continuity of existence and the full transfer of functions to the administration of the Division of Homeland Security and Emergency Management in the Department of Public Safety from the State Office of Information Technology:

- A. Formulate recommendations for a current and long-range communications plan involving public safety radio communications systems and their integration into applicable public safety communications networks in consultation with local, state, and federal departments, institutions, and agencies;
- B. Administer the approved current and long-range plan for public safety communications and supervise all state-owned public safety communications networks, systems, public safety wireless broadband and microwave facilities;
- C. Review all existing and future state-owned public safety communications applications, planning, networks, systems, programs, equipment, and facilities and establish priorities for those that are necessary and desirable to accomplish the purposes set forth in part 25 article 33.5 of title 24, C.R.S.;
- D. Approve or disapprove the acquisition of public safety communications equipment by any state department, institution, or agency;
- E. Establish and enforce public safety communications policies, procedures, standards, and records for management of public safety communications networks and facilities for all state departments, institutions, and agencies;
- F. Review, assess, and ensure compliance with federal and state public safety communications regulations pertaining to the needs and function of state departments, institutions, and agencies;
- G. Administer the Public Safety Communications Trust Fund created in § 24-33.5-2510, C.R.S.;
- H. Exercise the powers, duties, and functions regarding the tactical and long-term interoperable communications plan adopted by each region, and facilitate measure to improve communications among public safety agencies in the region and with public safety agencies of other regions, the state and federal governments, and other states, to include testing, training, and exercise; and
- I. Review submissions from regions for tactical and long-term interoperability plans or revisions thereto to determine eligibility to receive homeland security or public safety grant money administered by the Department of Local Affairs, the Department of Public Safety, or the Department of Health and Environment.

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**Editor's Notes**

**History**

New rule eff. 01/14/2024.